

24STCV09085 24STCV09085

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C09%2F14%2F2026

Source SHA-256: 27fd529ae566066aab7c9617f15bd9f03e1c4fad7023f9432b4419b574a26982

Case Number: 24STCV09085 Hearing Date: September 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 09/14/2026

CASE NUMBER: 24STCV09085

CASE NAME: RUTH MEJIA, AN INDIVIDUAL, ... vs RONALD C. BENWAY, AN INDIVI...

MOVING PARTY: Plaintiff Ruth Noemi Mejia (as petitioner for Teresa Michelle Morales Mejia, Miguel Angel Aguirre Mejia, Ruth Aguirre Mejia, and Jorge Emmanuel Aguirre Mejia)

OPPOSING PARTY: N/A – agreed settlement

PROCEEDING: Petition for Minor's Comp x4

RULING SUMMARY: The Petitions to approve compromise of pending action on behalf of minor claimants (1) Teresa Morales, a minor by and through her guardian ad litem Ruth Mejia; (2) Jorge Aguirre, a minor by and through his guardian ad litem Ruth Mejia; (3) Miguel Aguirre, a minor by and through his guardian ad litem Ruth Mejia; and (4) Ruth Aguirre, a minor by and through her guardian ad litem Ruth Mejia are granted.

Background

This

action arises from a breach of warranty of habitability by Defendants Ronald C.

Benway, as an individual and trustee of the Ronald C. Benway Revocable Living Trust, and Donald P. Benway (“Defendants”) concerning the real property located at 451 Virginia Avenue, Los Angeles, CA 90029. Plaintiffs Ruth Mejia; Carolina Morales; Teresa Morales, a minor by and through her guardian ad litem Ruth Mejia (“Teresa”)[1];

Jorge Aguirre, a minor by and through his guardian ad litem Ruth Mejia (“Jorge”); and Miguel Aguirre, a minor by and through his guardian ad litem Ruth Mejia (“Miguel” and collectively “Plaintiffs”).

On April

11, 2024, Plaintiffs filed their Complaint against Defendants, alleging eight causes of action for: (1) Breach of Implied Warranty of Habitability; (2) Breach of Statutory Warranty of Habitability; (3) Breach of the Covenant of Quiet Enjoyment; (4) Negligence; (5) Violation of Civ. Code § 1942.4; (6) Private Nuisance; (7) Violation of Tenant Anti-Harassment Ordinance; and (8) Violation of Unfair Competition Law (Bus. & Prof. C §§ 17200-09).

On June

18, 2024, Plaintiffs filed a First Amended Complaint adding minor claimant Ruth Aguirre, a minor by and through her guardian ad litem Ruth Mejia (“Ruth”).

On May 14,

2026, Ruth Mejia as petitioner (“Petitioner”) filed four Petitions for Minor’s Compromises, one for Teresa, Jorge, Miguel, and Ruth (collectively “Minor Claimants”).

The August

3, 2026 hearings on the Petitions for Minor’s Compromises were continued to September 14, 2026, because of a stay of proceedings imposed by the California Insurance Guarantee Association.

LEGAL

STANDARD

Standard for Approving Minor’s Compromises – Court approval is required for all settlements of a minor’s claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.)

“[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor’s best interests . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor’s injuries, care and treatment.” (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has “any bearing upon the reasonableness” of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952(a).)

An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION

The petitions show the following:

.

Teresa settled with Defendants for a total of \$50,000.00, with \$0.00 used for medical expenses, \$12,206.62 used to pay for attorneys’ fees, and \$1,173.52 used to pay non-medical expenses, leaving a balance of \$36,619.86 for Teresa. Petitioner proposes the net proceeds be deposited into a blocked account on behalf of Teresa.

.

Miguel settled with Defendants for \$50,000.00, with \$12,206.62 used to pay for attorneys’ fees, and \$1,173.52 used to pay non-medical expenses, leaving a balance of \$36,619.86 for Miguel. Petitioner

proposes the net proceeds be deposited into a blocked account on behalf of Miguel.

.

Ruth settled with Defendants for \$50,000.00, with \$12,206.62 used to pay for attorneys' fees, and \$1,173.52 used to pay non-medical expenses, leaving a balance of \$36,619.86 for Ruth. Petitioner proposes the net proceeds be deposited into a blocked account on behalf of Ruth.

.

Jorge settled with Defendants for \$50,000.00, with \$12,206.62 used to pay for attorneys' fees, and \$1,173.52 used to pay non-medical expenses, leaving a balance of \$36,619.86 for Jorge. Petitioner proposes the net proceeds be deposited into a blocked account on behalf of Jorge.

The Court finds the settlements are fair and reasonable. The Court also finds the requested attorney's fees, which constitute 25 percent of the gross settlement amount from each minor claimant, are reasonable.

Conclusion

The Petitions

to approve compromise of pending action on behalf of minor claimants (1) Teresa Morales, a minor by and through her guardian ad litem Ruth Mejia; (2) Jorge Aguirre, a minor by and through his guardian ad litem Ruth Mejia; (3) Miguel Aguirre, a minor by and through his guardian ad litem Ruth Mejia; and (4) Ruth Aguirre, a minor by and through her guardian ad litem Ruth Mejia are granted.

Date: 08/03/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court

[1]

Plaintiffs share the same surname "Morales" and "Aguirre." The Court addresses the minor plaintiffs individually by their first names for clarity.